

STATE OF NEW YORK

6316--A

2025-2026 Regular Sessions

IN SENATE

March 10, 2025

Introduced by Sen. SANDERS -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law and the state finance law, in relation to solid waste removal invoices and directing penalties and fines related to such invoices to be deposited into the environmental protection fund

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 392-k to read as follows:

3 § 392-k. Solid waste removal invoices. 1. For the purposes of this
4 section, the following terms shall have the following meanings:

5 (a) "Estimated full cost" shall mean a good faith projection of the
6 expected total price, including any service charges and additional fees,
7 of waste removal services.

8 (b) "Full cost" shall mean the total price, including any service
9 charges and additional fees, of waste removal services.

10 (c) "Waste removal services" shall mean the proper removal and
11 disposal of solid waste by a waste hauler for a customer on a one-time
12 basis.

13 (d) "Waste hauler" shall mean any person registered or permitted by
14 the department of environmental conservation to transport solid waste.

15 2. Any waste hauler that provides waste removal services shall:

16 (a) Inform a customer of the estimated full cost, presented in a range
17 from lowest to highest amount waste removal services may cost, including
18 the cost per unit of weight prior to the provision of waste removal
19 services; and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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(b) Provide such customer with an invoice of the full cost of such waste removal services immediately after the completion of such waste removal services; and

(c) Provide such customer with an itemized receipt following payment for such waste removal services.

3. Each invoice required pursuant to paragraph (b) of subdivision two of this section shall contain the following notice:

"THIS INVOICE IS SUBJECT TO THE PROVISIONS OF SECTION 392-k OF THE GENERAL BUSINESS LAW."

4. Any person who violates any provision of this section shall be liable for a civil penalty not to exceed five hundred dollars for the first violation and not to exceed two thousand five hundred dollars for subsequent violations.

5. All civil penalties and fines collected for any violation of this section shall be deposited to the credit of the environmental protection fund established pursuant to section ninety-two-s of the state finance law.

§ 2. Subdivision 3 of section 92-s of the state finance law, as amended by chapter 734 of the laws of 2021, is amended to read as follows:

3. Such fund shall consist of the amount of revenue collected within the state from the amount of revenue, interest and penalties deposited pursuant to section fourteen hundred twenty-one of the tax law, the amount of fees and penalties received from easements or leases pursuant to subdivision fourteen of section seventy-five of the public lands law and the money received as annual service charges pursuant to section four hundred four-n of the vehicle and traffic law, all moneys required to be deposited therein from the contingency reserve fund pursuant to section two hundred ninety-four of chapter fifty-seven of the laws of nineteen hundred ninety-three, all moneys required to be deposited pursuant to section thirteen of chapter six hundred ten of the laws of nineteen hundred ninety-three, repayments of loans made pursuant to section 54-0511 of the environmental conservation law, all moneys to be deposited from the Northville settlement pursuant to section one hundred twenty-four of chapter three hundred nine of the laws of nineteen hundred ninety-six, provided however, that such moneys shall only be used for the cost of the purchase of private lands in the core area of the central Suffolk pine barrens pursuant to a consent order with the Northville industries signed on October thirteenth, nineteen hundred ninety-four and the related resource restoration and replacement plan, the amount of penalties required to be deposited therein by section 71-2724 of the environmental conservation law, all moneys required to be deposited pursuant to article thirty-three of the environmental conservation law, all fees collected pursuant to subdivision eight of section 70-0117 of the environmental conservation law, all moneys collected pursuant to title thirty-three of article fifteen of the environmental conservation law, beginning with the fiscal year commencing on April first, two thousand thirteen, nineteen million dollars, and all fiscal years thereafter, twenty-three million dollars plus all funds received by the state each fiscal year in excess of the greater of the amount received from April first, two thousand twelve through March thirty-first, two thousand thirteen or one hundred twenty-two million two hundred thousand dollars, from the payments collected pursuant to subdivision four of section 27-1012 of the environmental conservation law and all funds collected pursuant to section 27-1015 of the environmental conservation law, all moneys required to be deposited pursuant to

1 sections 27-2805 and 27-2807 of the environmental conservation law, all
2 moneys collected pursuant to section 27-2730 of the environmental
3 conservation law, all moneys required to be deposited pursuant to
4 section 27-3205 of the environmental conservation law, all moneys
5 collected pursuant to section three hundred ninety-two-k of the general
6 business law, and all other moneys credited or transferred thereto from
7 any other fund or source pursuant to law. All such revenue shall be
8 initially deposited into the environmental protection fund, for applica-
9 tion as provided in subdivision five of this section.
10 § 3. This act shall take effect immediately.